

Line 2

Case Name: *Lee Drone v. Peter D. Bear, et al.*

Case No.: 25CV480264

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendants Allen S. Porter and Peter D. Bear (collectively, “Defendants”) specially appear and move to quash service of the Summons on the ground that the Court lacks personal jurisdiction over them under Code of Civil Procedure Section 418.10. Notice of Motion (the “Motion”) at 1:24-2:2 (filed: Feb 6, 2026).

The Motion came on for hearing on July 15, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Factual Allegations

According to the Complaint, on November 1, 2021, Plaintiff Lee Drone (“Plaintiff”) and Ian Goodman, as co-owners, purchased the real property located at 1430 Ellen Avenue, Madison, Wisconsin (“Wisconsin Property”). Dane County Title Company acted as the settlement agent for the transaction (Complaint ¶¶ 1, 2)

Some dispute arose between Plaintiff and Ian Goodman. As a result, Ian Goodman, through his attorney Peter Bear, sent various email communications to Plaintiff regarding their co-ownership agreement, offer to purchase Plaintiff’s share, Goodman’s petition for harassment injunction, and service of the restraining order. Peter Bear and Plaintiff exchanged email communications pertaining to the legal proceedings in Wisconsin, discovery, settlement terms and proposals. Some of the email communications contained production of Plaintiff’s loan application without redacting Plaintiff’s private information, and Goodman’s petition, which contained false statements. (Complaint ¶¶ 2-10, 26-107).

As a result of Defendants’ allegedly wrongful acts and communications, Plaintiff was unlawfully excluded from use and disposition of the Wisconsin Property; has incurred litigation costs, travel costs, loss of work time; has suffered reputational harm and emotional distress. (Complaint ¶¶ 197-198)

Plaintiff initiated this action by filing the Complaint on November 21, 2025, in which Plaintiff brings the following 84 Causes of Action:

Count 1 - Negligent Mishandling of Property-Related Financial Records; Breach of custodial duty as settlement agent

Count 2- Negligent Misrepresentation; Failure to preserve accuracy in closing

documentation

Count 3 - Intentional Interference with Property Rights; Attorney-assisted coercive real-estate proposal used to pressure surrender of co ownership interest

Count 4- Fraudulent Misrepresentation; Misleading use of attorney signature block to induce reliance

Count 5 - Economic Duress; Embedding legal threats, deadlines, and financial pressure to coerce property transfer

Count 6- Unlawful Restraint on Speech and Conduct; Embedding lifetime no-contact and behavioral restrictions in attorney-shaped proposal

Count 7 - Constructive Fraud; Exploiting implied attorney expertise to conceal material risks and liabilities

Count 8- Coerced Waiver of Legal Rights; Embedding unlawful waivers of communication and legal rights inside coercive proposal

Count 9 - Fraudulent Misrepresentation; False assurances regarding financial terms, legal effect, and liability consequences

Count 10 - Intentional Interference with Contractual Relations; Attorney-driven interference with existing co-ownership and contractual obligations

Count 11- Abuse of Process under California Common Law; Retaliatory use of judicial process after refusal to surrender property

Count 12 - Negligent Misrepresentation; Use of false Wisconsin address to obtain defective service and jurisdiction

Count 13 – Defamation; Fabricated claim of access to weapons to influence judicial process

Count 14 - Concealment of Material Facts; Failure to identify the subject property in official service record;

Count 15 - Intentional Interference with Property Rights; Coercive transmission of renewed proposal and affidavit through attorney intermediary

Count 16 - Fraudulent Misrepresentation of Judicial Status; Misuse of void temporary restraining order to coerce property transfer

Count 17 - Economic Duress; Use of pending and prospective judicial filings as leverage for property transfer

Count 18 - Intentional Interference with Property Rights; Re-issuance of purchase offer with behavioral restrictions and deadline pressure

Count 19 - Misrepresentation of Service by Publication and Default Status; False representation of completed service used to induce agreement

Count 20 - Economic Duress; Quid-pro-quo settlement linked to anticipated court success

Count 21- Intentional Interference with Property Rights; Use of electronic communication to coerce property transfer outside judicial process

Count 22 – Defamation per se; Use of professional authority to impair liberty and property interests

Count 23 - Abuse of Process; Coercive use of litigation and publicity threats to obtain property

Count 24 - Economic Duress; Economic coercion through quid-pro-quo agreement to withhold legal action

Count 25 - Fraudulent Misrepresentation; Use of asserted judicial authority to pressure settlement

Count 26 - Abuse of Process; Framing separate legal and private issues to extend leverage
Count 27 - Constructive Fraud; Failure to include lender release or mortgage protection
Count 28 - Civil Conspiracy to Commit Fraud; Joint action to divest property interest without due process
Count 29 - Abuse of Process; Use of judicial order as instrument of private coercion
Count 30 - Fraudulent Concealment; Presentation of facially neutral document masking threats
Count 31 - Economic Duress; Attorney's direct issuance of coercive proposal through misuse of his professional role
Count 32 - Negligent Entrustment of Confidential Financial Information; Improper upstream disclosure of sensitive lender-file materials to an unauthorized attorney
Count 33 - Negligent Mishandling of Records; Failure to safeguard co-owned financial documents prior to transmission to third parties
Count 34 - Invasion of Privacy (Informational Privacy); Disclosure of Plaintiff's lender-file document by co-owner outside lawful process
Count 35 - Causation of Public Disclosure of Private Facts; Upstream financial-document disclosure resulting in downstream public exposure
Count 36 - Abuse of Process; Failure to provide corroborating materials referenced in sworn affidavit
Count 37 - Abuse of Process; Withholding chain-of-custody information for recordings referenced in sworn filings
Count 38 - Abuse of Process; Procedural deprivation through unserved and incomplete filing
Count 39 - Slander of Title; Misrepresentation of property interest to diminish recorded title
Count 40 - Defamation per se; Insertion of irrelevant personal attacks to bias judicial proceeding
Count 41 - Abuse of Process; Application of waiver theory to nullify jurisdictional protections
Count 42 - Abuse of Process; Evasion of lawful service requirements through unauthorized delegation
Count 43 - Abuse of Process; Failure to correct co-counsel's unlawful service conditions
Count 44 - Abuse of Process; Evasion of lawful service requirements by providing invalid address
Count 45 - Abuse of Process; Unlawful conditioning of procedural rights on non-statutory terms
Count 46 - Abuse of Process; Expansion of unauthorized service demands across multiple proceedings
Count 47 - Civil Conspiracy to Commit Abuse of Process; Coordinated evasion and obstruction of lawful service between co-counsel
Count 48 - Abuse of Process; Failure to ensure lawful service depriving notice and participation
Count 49 - Abuse of Process; Neglect of mandatory service obligations resulting in denial of notice

Count 50 - Abuse of Process; Improper electronic service of initiating pleadings without authorization

Count 51 - Abuse of Process; Tacit participation in unauthorized electronic service of pleadings

Count 52 - Abuse of Process; Improper timing and electronic delivery of hearing evidence without adequate notice

Count 53 - Public Disclosure of Private Facts; Use and circulation of outdated and protected correspondence to influence judicial proceedings

Count 54 - Civil Conspiracy to Commit Abuse of Process; Joint preparation and submission of unauthorized hearing exhibits

Count 55 - Intentional Misrepresentation Regarding Property Ownership; Initial misrepresentation establishing ongoing ownership-pressure scheme

Count 56 - Unfair Business Practices (Pattern of Fraudulent Conduct); Linking renewed proposal, affidavit, and threats to earlier fraudulent acts

Count 57 - Unfair Business Practices (Use of judicial Process to Coerce Property Transfer); Integration of proposal, petition, and service filings into continuing pattern of wrongful acts

Count 58 - Civil Conspiracy to Commit Fraud; Affidavit used as key act supporting ongoing fraudulent scheme

Count 59 - Unfair Business Practices (Pattern of Fraudulent and Coercive Conduct); Incorporating December 19 email and offer as additional acts in ongoing scheme

Count 60 - Abuse of Process; Use of belief-based affidavit and evidence refusal as continuing acts of obstruction

Count 61 - Unfair Business Practices (Evidence Obstruction and Coercive Settlement); Use of evidence refusal, belief-based affidavit, and coercive settlement as continuing acts

Count 62 - Public Disclosure of Private Facts; Integration of January 8, 2024 leak into continuing pattern of wrongful disclosure

Count 63 - Invasion of Privacy (Informational Privacy); Integration of Ian Goodman's disclosure into ongoing pattern of privacy invasion and coercive conduct

Count 64 - Civil Conspiracy to Commit Abuse of Process and Fraud; Obstruction, threats, and false-record email cluster as related acts in ongoing scheme

Count 65 - Abuse of Process; Defective filing, false statements, and jurisdictional manipulation as acts of misuse of process

Count 66 - Abuse of Process; Use of service obstruction as continuing acts of misuse of process

Count 67 - Economic Duress and Coercive Use of Litigation Threats; Use of threatened litigation and fear to obtain property interests

Count 68 - Abuse of Process; Advocate-as-witness misconduct and fabrication of evidence

Count 69 - Abuse of Process; Use of interstate email to circumvent lawful service and advance injunction proceedings

Count 70 - Invasion of Privacy (Informational Privacy); Unauthorized acquisition and initial disclosure of personally identifiable and financial data

Count 71 - Invasion of Privacy (Informational Privacy); Unauthorized use of

confidential financial records outside any lawful process
 Count 72 - Abuse of Process; Withholding evidence and altering records to impair defense
 Count 73 - Abuse of Process; Interstate email scheme to misrepresent service and gain procedural advantage
 Count 74 - Economic Duress through Coercive Settlement Terms; Wrongful use of fear and litigation threats to obtain property rights
 Count 75 - Economic Duress through Coordinated Litigation and Reputation Threats; Coercive litigation threats and property-surrender demands in coordinated package
 Count 76 - Economic Duress via Threatened Litigation and Reputational Harm; Fear of litigation and reputation used as economic coercion
 Count 77- Economic Duress through Injunction-Conditioned Property Demands; Pattern of injunction-conditioned property demands as ongoing course of economic duress
 Count 78 - Invasion of Privacy (Informational Privacy); Interstate electronic release of confidential loan-application data
 Count 79 - Intentional Misrepresentation (Fraudulent Inducement); Use of interstate email for coercive property offers and fraudulent inducement
 Count 80 - Abuse of Process; Suppression of recordings and use of evidence requests for settlement pressure
 Count 81 - Abuse of Process and Coercive Interference with Petition Rights; Conditioning property relief on silence and withdrawal of participation
 Count 82 - Abuse of Process (False Affidavit Use); Submission of affidavit containing belief-based, materially false statements
 Count 83 - Negligent Handling of Confidential Financial Information; Negligent custodial handling enabling unauthorized disclosure of loan records
 Count 84 - Civil Conspiracy to Commit Fraud and Abuse of Process; Coordinated scheme using misrepresentation and misuse of process to impair property rights.

Complaint at pp. 38-82.

II. Legal Standard on Motion to Quash

A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow" may move "to quash service of summons on the ground of lack of jurisdiction of the court over him or her" that results from lack of proper service. (Code. Civ. Proc. § 418.10(a)(1). A defendant has 30 days after the service of the summons to file a responsive pleading. (Code. Civ. Proc. § 412.20(a)(3).) "Service of process, under longstanding tradition in our system of justice, is fundamental to any procedural imposition on a named defendant." (*AO Alfa-Bank v. Yakovlev* (2018) 21Cal.App.5th 189, 202 [internal quotations marks and citation omitted].) "To establish personal jurisdiction, compliance with statutory procedures for service of process is essential." (*Kremerman v. White* (2021) 71 Cal.App.5th 358, 371.) Defendant's knowledge of the action does not dispense with statutory requirements for service of summons. (*Kappel v. Bartlett* (1988) 200 Cal.App.3d 1457, 1466.)

When a defendant moves to quash service of process on jurisdictional grounds, the plaintiff has the initial burden of demonstrating facts justifying the exercise of jurisdiction. (See, *Jayone Foods, Inc. v. Aekyung Industrial Co. Ltd.* (2019) 31 Cal.App.5th 543, 553.) “The plaintiff must do more than merely allege jurisdictional facts. It must present evidence sufficient to justify a finding that California may properly exercise jurisdiction over the defendant.” (*In re Automobile Antitrust Cases I & II* (2005) 135 Cal.App.4th 100, 110.) “If the plaintiff meets this initial burden, then the defendant has the burden of demonstrating that the exercise of jurisdiction would be unreasonable.” (*Jayone Foods, supra*, 31 Cal.App.5th at p. 553.)

III. Analysis of the Motion to Quash

Specially-appearing Defendants contend the Court lacks personal jurisdiction over them because (1) they have not purposefully availed themselves of California, (2) Plaintiff’s claims do not arise out of California contacts, and (3) exercising jurisdiction would be unreasonable and inconsistent with fair play and substantial justice. (Motion at 6:5-6, 7:7-8, 7:20-21) More specifically, Defendants argue that the subject communications “received in California were incidental to Wisconsin-centered litigation and a Wisconsin property/title dispute and were not an attempt to exploit, target, or conduct activities within California. Plaintiff’s unilateral decision to be in California when receiving litigation-related communications does not transform Wisconsin centered conduct into California-directed activity.” (Motion at 6:21-26)

In Opposition, Plaintiff argues that specific jurisdiction exists because Defendants purposefully directed and transmitted their communications/materials that associated with the Wisconsin dispute to him in California. Those communications and materials included emails, affidavits, settlement-related communications, injunction-related communications, demands, and disclosures. (Opposition at 3:5-13)

To comport with federal and state due process, California may only exercise jurisdiction when a defendant has sufficient minimum contacts with the state to satisfy traditional notions of fair play and substantial justice. Under the minimum contacts test, courts examine the quality and nature of a defendant’s action to determine whether requiring him/her to submit to jurisdiction in California is reasonable and fair. (See, *Zehia v. Superior Court* (2020) 45 Cal.App.5th 543, 551–552.

A court may exercise specific jurisdiction over a nonresident defendant only if: (1) the nonresident defendant has purposefully availed himself of forum benefits; (2) the controversy relates to, or arises out of, the nonresident defendant’s contacts with the forum; and (3) the exercise of jurisdiction comports with fair play and substantial justice. The specific jurisdiction analysis focuses on the relationship among the defendant, the forum, and the litigation. (*Ibid.*)

“The purposeful availment inquiry ... focuses on the defendant’s intentionality. This prong is only satisfied when the defendant purposefully and voluntarily directs his activities toward the forum so that he should expect, by virtue of the benefit he receives, to be subject to the court’s jurisdiction based on his contacts with the forum. Thus, the

purposeful availment requirement ensures that a defendant will not be haled into a jurisdiction solely as a result of random, fortuitous, or attenuated contacts, or of the unilateral activity of another party or a third person. When a [defendant] purposefully avails itself of the privilege of conducting activities within the forum State, it has clear notice that it is subject to suit there, and can act to alleviate the risk of burdensome litigation by procuring insurance, passing the expected costs on to customers, or, if the risks are too great, severing its connection with the State.” (*Pavlovich v. Superior Court*, (2002) 29 Cal. 4th 262, 269; internal citations and quotes omitted)

Courts apply the “effects test” to determine purposeful availment not only in defamation context but also in other intentional torts, including business torts. (See *IMO Industries, Inc. v. Kiekert AG* (3d Cir. 1998) 155 F.3d 254, 259-260, 261; *Far West Capital, Inc. v. Towne* (10th Cir. 1995) 46 F.3d 1071, 1077.) Under this test, intentional conduct occurring elsewhere may give rise to jurisdiction in California where it is calculated to cause injury in California. The defendant must expressly aim or target his conduct toward California, with the knowledge that his intentional conduct would cause harm in the forum. (See, *Pavlovich, supra*, 29 Cal. 4th at pp. 271–273; *Calder v. Jones* 465 U.S. 783, 788-790.) California courts emphasize that the analysis must focus on the defendant's contacts with the forum state itself, and not merely the defendant's contacts with a person who resides there. The proper inquiry is whether the defendants’ conduct connects them to the forum in a meaningful way. (See, *Burdick v. Superior Court*, (2015) 233 Cal. App. 4th 8, 13.)

Here, the Complaint alleges various and sundry torts arising from the content of email communications between the parties. The communications pertained to Ian Goodman’s application for a restraining order against Plaintiff, service of the restraining order via publication, title and possessory dispute over the Wisconsin Property, settlement proposals and terms, related evidence supporting the restraining order, related evidence supporting the title dispute, Wisconsin court docket/hearing/filings. Communications predominantly occurred between Plaintiff and Peter Bear, who represented Ian Goodman. Plaintiff himself sent emails to Mr. Bear addressing the legal proceedings and requesting information, documents, and evidence. (Complaint ¶¶ 2-10, 26-107)

Electronic communications, including emails and telephone calls, may establish the requisite minimum contacts if a defendant “reaches back” into California to create a “continuing obligation” or to conduct business with a resident. However, sending communications about legal proceedings occurring in a foreign state generally lacks the necessary California focus. Simply transmitting communications to a California resident with knowledge of their residency is insufficient to satisfy the express aiming requirement if the subject matter of the communication is anchored in another forum. If the emails merely transmit information regarding foreign legal proceedings, they constitute contact with the Plaintiff rather than contact purposefully directed at the forum state itself, making the contact too random, fortuitous, or attenuated to justify personal jurisdiction. Plaintiff submits his Declaration in support of his Opposition. Plaintiff declares:

- In 2024, he filed a Wisconsin partition action concerning the Wisconsin Property,

Case No. 2024CV000216, which remains pending. (Decl. ¶ 4)

- In 2025, he filed Wisconsin actions 2025CV001149 and 2025CV001521, which asserted certain non-property claims arising from related underlying events. (Decl. ¶ 6)
- He, thereafter, elected to pursue certain related non-property claims in California, where he has resided and worked since 2019. (Decl. ¶ 8)
- Prior to purchasing the Wisconsin Property, he and Ian Goodman exchanged emails pertaining to their co-ownership of the Property, loan application, appraisal, financing, etc. (Decl. ¶¶ 10-13)
- During relevant times, he received communications and materials concerning the disputes and matters referenced in the complaint. The communications included emails, litigation-related communications, proposals, settlement-related communications, affidavits, demands, and related materials concerning the disputes. (Decl. ¶¶ 15-17)
- He received email communications from Defendants concerning the disputes and matters referenced in the complaint. These communications included emails, settlement-related communications, affidavits, injunction-related communications, demands, sworn affidavits, unredacted confidential financial documents, and other materials concerning the disputes and matters referenced in the Complaint. (Decl. ¶¶ 26-27)

Declaration of Lee Drone in Support of Plaintiff's Opposition to Defendants' Motion to Quash (filed: June 3, 2026).

But neither Plaintiff's Declaration nor his verified Complaint show that Defendants' out-of-state communications were expressly aimed or intentionally targeted at California, rather than at him personally. On this record, Plaintiff fails to meet his burden of demonstrating facts that justify the exercise of jurisdiction. Defendants' out-of-state email communications regarding the Wisconsin legal proceedings sent to Plaintiff (a California resident) do not justify the exercise of personal jurisdiction over Defendants in California Defendants because their focus is on Plaintiff rather than the forum state of California.

IV. Conclusion & Order

Accordingly, Defendants' Motion to Quash Service of Summons for lack of personal jurisdiction over them is **GRANTED**.

SO ORDERED.

Date: July 15, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 3

Case Name: *The Heights Residence, LLC v. Victoria Soboleva, et al.*

Case No.: 23CV417705

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff The Heights Residence, LLC (“Plaintiff” or “The Heights”) moves for Summary Adjudication under Code of Civil Procedure Section 437c(f) against Defendants Victoria Soboleva (“Soboleva”), Aureus Finance Group, LLC (“Aureus”), U.S. Bank Trust National Association (“U.S. Bank”) and FCI Lender Services, Inc. (“FCI”) (collectively, “Defendants”) of the following issues:

Issue No. 1: The Heights’s Third Cause of Action for Declaratory Relief should be summarily adjudicated in Height’s favor against Defendants because there is no triable issue of material fact and The Heights is entitled to Judgment as a matter of law.

Issue No. 2: The Heights’s Fourth Cause of Action for Quiet Title should be summarily adjudicated in The Heights’s favor against Defendants because there is no triable issue of material fact and The Heights is entitled to Judgment as a matter of law.

Notice of Motion (the “Motion”) at 2:4-14 (filed: Nov. 26, 2025).

The Motion came on for hearing on July 15, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, including all the evidence and separate statements and authorities submitted by each party, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Background

On June 14, 2023, Plaintiff The Heights Residence, LLC (“The Heights”) filed this civil action against the following Defendants: Victoria Soboleva (“Soboleva”), Aureus Finance Group, LLC (“Aureus”), Fidelity National Title Insurance Company (“Fidelity”), California TD Specialists (“California TD”), U.S. Bank Trust National Association (“US Bank”), FCI Lender Services, Inc. (“FCI”), and Mark Spiller (“Spiller”) (collectively, “Defendants”).

According to the First Amended Complaint (“FAC”), The Heights is the owner of real property at 2051 Waverly St., Palo Alto, CA (“Subject Property”). (FAC, ¶¶ 1, 14, Exs. A, C.) Paul Roberts (“Roberts”) is the only manager or authorized agent of The Heights. (*Id.* at ¶ 13, Ex. B.) Spiller and Soboleva held themselves out to be the owner of the Subject Property, providing fraudulent proof of ownership, and made inquiries to Aureus about a Cash Out Refinance, despite them having no affiliation with The Heights. (*Id.* at ¶¶ 15, 17.)